

JUSTIFICATION REVIEW DOCUMENT
RFO FAR 12 Justification and Approval
for Other than Full and Open Competition

Program/Equipment: *Retrofitting Services for Tow Vehicle*

Authority: Title 10 United States Code (U.S.C.) §41 USC 1901 as implemented in Federal Acquisition Regulation RFO FAR 12.201-1.

Amount: [REDACTED]

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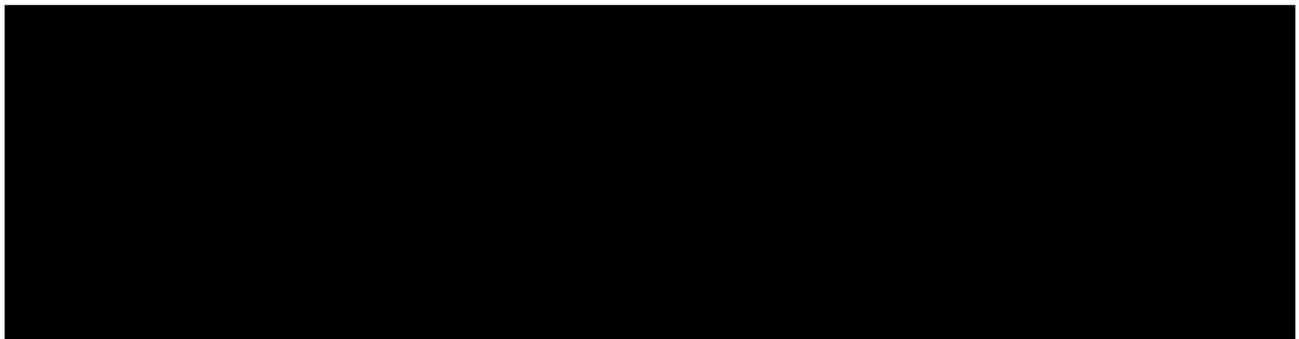
Prepared by: *Jon-Vincent Holden* Phone: 601-572-5422
Contract Specialist Date:
E-mail: Jon-Vincent.S.Holden@usace.army.mil

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Contracting Officer: *David Ammermann* Phone: 217-373-4490
Contracting Officer Date:
E-mail: david.g.ammermann@usace.army.mil

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.



**RFO FAR 12 Justification and Approval
for Other than Full and Open Competition**

- 1. Requiring Activity:** Retrofitting of Vehicle
- 2. Contracting Activity:** The Airfields and Pavements Branch (APB) have the need to procure services for retrofitting of a government owned vehicle to power the trail-mounted Fast Falling Weight Deflectometer (FFWD) equipment. *This is estimated at* [REDACTED]
- 3. Description of Action:** The vehicle will be modified and equipped to meet all operational, safety, and compliance requirements associated with work activities conducted with the FFWD equipment.
- 4. Description of Supplies/Services:** The retrofitting of the new vehicle will require:
 - All parts necessary to provide charging capability to the deflector
 - All parts required to power interior electronics for data collection
 - All parts required to provide trailer signaling and brake control to the deflector
 - All parts required for providing park brake signal
 - All wiring/cabling/connectors required for above tasks
 - Laptop mount
 - Labor for Installation of all parts and equipment
- 5. Authority Cited:** *Title 10 United States Code (U.S.C.) §41 USC 1901 as implemented in Federal Acquisition Regulation RFO FAR 12.201-1.*
- 6. Reason for Authority Cited:** Retrofitting Services for ERDC owned tow vehicle to support the ERDC FFWD. The FFWD equipment was manufactured and procured from Dynatest US, Inc. Dynatest has the unique capability to run the proper cables and install the proper inverters that work with ERDC's HWD.
- 7. Efforts to Obtain Competition:** *A NOI will be posted on SAM.*
- 8. Actions to Increase Competition:** *A NOI will be posted on SAM.*
- 9. Market Research:** Based upon the market research herein, the required Retrofitting Services for the ERDC owned tow vehicle to support the Fast-Falling Weight Deflectometer is a commercial service. Dynatest US, Inc. is the only company that can provide the manufacturing, servicing, and support of the Fast-Falling Weight Deflectometer and tow vehicle. Dynatest US, Inc. does not provide instruction or authorization to outside individuals or companies to perform or provide parts, fabrication, maintenance, repair, training, and warranty. Thus, Dynatest US, Inc. is the sole provider of the required services to retrofit the ERDC's tow vehicle in order to support the FFWD. It is recommended that this requirement be issued to Dynatest US, Inc. on a

sole source basis.

10. Interested Sources:

Dynatest, Inc.
576 NE 23RD AVE
Gainesville, FL 32609
<https://www.dynatest.com/>

Unique Entity ID: M5M2CFCSJNN6
CAGE/NCAGE: 8KM71

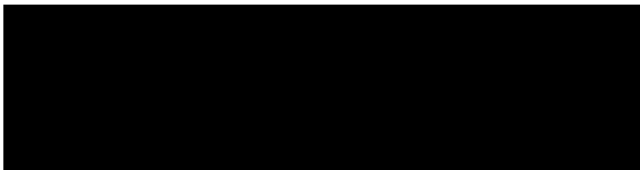
11. Other Facts:

a. *There are no previous ERDC (or other agencies) services for this specific type of retrofitting. Searches on fpds.gov for "Retrofitting of Vehicle" does not show other government agencies completing this service with these words in the title.*

12. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



14. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price/cost to the Government for this contract action will be fair and reasonable. This determination will be made using Title 10 United States Code (U.S.C.) §41 USC 1901 as implemented in RFO FAR 12. As part of the basis, certified cost or pricing data *will or will not* be required.

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David Ammermann
Contracting Officer

15. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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David Ammermann
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of Retrofitting Services for Tow Vehicle on an other than full and open competition basis pursuant to the authority of Title 10 United States Code (U.S.C.) §41 USC 1901 as implemented in Federal Acquisition Regulation RFO FAR 12.201-1. The estimated value of this is [REDACTED]. The approval is subject to availability of funds, and provided that the supplies and/or services herein described have otherwise been authorized for this acquisition.

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David Ammermann
Contracting Official